

Texas WIC Health and Human Services Commission

Effective December 13, 2024

Policy No. CS:10.0

Economic Unit for Income

Purpose

To establish a consistent method of determining income eligibility.

Authority

7 CFR Part 246.7; USDA FNS Instruction 803-3; 26 TAC Section 366.3

Policy

Income eligibility for WIC services must be based on the total income of the economic unit.

Definitions

Economic Unit means all persons, related and/or unrelated, living together in the same dwelling, with the exception of the following special situations: pregnant woman, infants/children placed through Department of Family Protective Services (DFPS), e.g., foster/kinship, and individuals who qualify as a separate economic unit (SEU).

Procedures

- I. When determining an applicant's income eligibility for WIC services:
 - A. Determine economic unit size by counting all persons living in the dwelling, with the following exceptions:
 1. pregnant women;
 2. individuals who reside in institutions;
 3. infants/children placed through DFPS; and
 4. individuals who qualify as a SEU (see Procedure VI).
 - B. Determine total economic unit income by counting all incomes of all members of the unit.

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- C. Compare the total economic unit income for the economic unit size with the Texas WIC Income Guidelines (see [CS:12.0 Texas WIC Income Guidelines](#)).
- D. Record unit size and income(s) in Family Page of the MIS.
- II. For a pregnant woman who does not have adjunctive income eligibility and who does not meet the WIC income eligibility guidelines, increase her family size by the number of fetuses. If she is expecting one child, count her as two individuals; if she is expecting twins, count her as three individuals. Any unborn fetus(s) must be counted as part of the household size.
- III. Individuals residing in institutions (e.g., homes for battered women, drug treatment centers, intermediate care facilities for mentally retarded or mentally ill persons, half-way houses, etc.) that meet the conditions specified in [CS:35.0 Certification of Homeless and Those Living in Shelters and Institutions](#) are considered a SEU which consists of the applicant and family members residing in the institution.
- IV. A foster child must be considered a one-person household.
 - A. The income of the child must be the payments made by DFPS or another outside source for the care of the child. Note: If a foster child receives income, whether from a job or outside financial resource, it must be counted in the income determination.
 - B. Income reassessment during an active certification for an infant/child who is later adopted is not required if 90 days or less before expiration for certification period.
- V. When determining economic unit size:
 - A. Do not include members who have been absent from the economic unit for more than six months, unless the member continues to

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Policy No. CS:10.0

exercise customary family responsibilities, i.e., financially contributes to family.

- B. You may include persons temporarily absent if the following circumstances exist:
 - 1. other members still consider the economic unit to be the principal residence of the absent member; and
 - 2. the absence does not exceed six months (except in the case of school or military service); and
 - 3. the absence is for a purpose such as school, training, employment, hospitalization, institutionalization, military service etc.; and
 - 4. the absent member continues to exercise customary family responsibilities, e.g., a parent continues providing support, physical care, planning, etc.

VI. On an exception basis, a SEU may be identified within a dwelling and the SEU must be marked when entering the income record on the Family Page in the MIS.

- A. if the applicant indicates that he/she should be counted as a separate group/economic unit; and
- B. the applicant verbally confirms that the unit usually purchases or intends to purchase and prepare food separately.

VII. Do not certify the following as a SEU:

- A. minor children who live with their parents
- B. a child under age 18 who lives with adult household members who serve as managing conservators; That is,
 - 1. the household member(s) provides more than half of the child's total support; and
 - 2. the family states that the child is under parent or guardian control.

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- C. spouses: two people who are legally married, and/or two persons who live together and represent themselves as married, are in the same economic unit.